

remainder to A. in fee, and no issue of A. or B. are born at the time of commission of the waste. In this case, as no man shall take advantage of his own wrong, and there is no estate of inheritance in *esse* except that of A. himself, he is *constructively a trustee* in equity of the proceeds of the timber for the benefit of all the persons interested under the settlement, except himself, according to their respective estates, that is, he is made to account for the proceeds which are invested and deemed part of the settlement, and the income of such investment is payable to the tenant in *præ-senti*, not being the wrongdoer, whether such tenant be for life or otherwise, and if there be no such tenant it accumulates. But if in the case put there be no issue afterwards born of A. or B., and therefore there is no inheritance but that of A., the fund subject to B.'s life estate will belong to A. (*f*). In the above case, * A. himself [*189] had the first vested estate of inheritance; but it may

(*f*) *Williams v. Bolton*, 1 Cox, 72; *Powlett v. Bolton*, 3 Ves. 374; see further statement of this case in 2 New Rep. 305. But in *Garth v. Cotton*, 3 Atk. 751; 1 Ves. sen. 523, 546, interest at 4 per cent was given only from the filing of the bill; and in *Duke of Leeds v. Amherst*, 12 Sim. 476; 2 Ph. 117, interest at 4 per cent was given only from the death of the wrongdoer. In the later case of *Bagot v. Bagot*, 32 Beav. 509, M. R. refused interest further back than from the death of the wrongdoer. The decision was appealed from to L. C. (Lord Westbury), and the case was compromised, but in the course of the argument L. C. intimated his concurrence with the view of M. R. as to the time whence interest was to be computed. The L. C. seemed also to think that, as to such timber felled by the tenant for life as the Court upon application to it would have ordered to be cut, the tenant for life would be protected as having done a proper act, but that the onus would lie upon him to establish such a case. "As regards the question of interest

on the money arising from timber properly cut, the plaintiff," he said, "could hardly ask for interest. Of course the obligation of making out the case lies upon the tenant for life." — *M.S.* However this may be as to the timber *properly* cut, the remark suggests itself as to the timber *improperly* cut, that if the tenant for life is not to pay interest from the time of felling, he takes advantage of his own wrong, for if the timber had been left standing the increase of growth would have enured to the benefit of the remainderman, but by cutting the timber the tenant for life intercepts this accretion and enjoys the *usufruct* himself. True he loses the mast and shade, but that is the result of his own wilful act, and he cannot therefore complain. As regards mines, the case is different, for here there is no continuing growth for the benefit of the remainderman. But in one respect the offence of waste is greater, for if timber be cut other timber may grow in its place, but when minerals are abstracted the vacuum remains for ever. On the